

(20)

Tentative Ruling

Re: ***Lopez v. Mitchell et al.***
Superior Court Case No. 21CECG02405

Hearing Date: August 12, 2026 (Dept. 503)

Motion: Default Prove-Up

Tentative Ruling:

The requested judgment has been signed. The hearing is off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/10/2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***Gunner v. Aboujaoude, Inc. et al.***
Superior Court Case No. 25CECG04744

Hearing Date: August 12, 2026 (Dept. 503)

Motion: Default Prove-Up

Tentative Ruling:

Hearing remains on calendar. The parties are directed to appear on August 12, 2026, at 3:30 p.m. in Department 503.

Explanation:

By defaulting, defendant admits liability for the debt or obligation on all well pled causes of action. (*Morehouse v. Wanzo* (1968) 266 Cal.App.2d 846, 853.) A default does not, however, admit that the amount prayed for is the proper amount. (*Brown v. Superior Court* (1966) 242 Cal.App.2d 519, 526.) The court is required to enter judgment only for such sum as appears just. (Code Civ. Proc., § 585, subd. (b).) Plaintiff must present evidence proving the amount of damages, including evidence as to any partial payments made by defendants. Without such evidence, the court may refuse to enter judgment in any amount, notwithstanding defendants' default. (*Taliaferro v. Hoogs* (1963) 219 Cal.App.2d 559, 560.)

Plaintiffs Richard V. Gunner and Michael R. Gunner (collectively "Plaintiffs") have given notice of intent to present testimony. The following issues remain to be addressed at the hearing:

Required Forms Not Filed:

A proposed judgment is not lodged with the court. (Cal. Rules of Court, rule 3.1800(a)(6).) A proposed judgment is requested.

Dismissal of Doe Defendants:

Doe defendants must be dismissed prior to seeking default judgment. (Cal. Rules of Court, rule 3.1800 (a)(7).)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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